

1.

CASE #	CASE NAME	HEARING NAME
CVME2504256	WELLS FARGO BANK, NA VS BAIR	MOTION TO DEEM MATTER ADMITTED

Tentative Ruling: Motion is unopposed. Motion is **GRANTED**. Requests for Admission propounded on 03/27/2026 are deemed admitted. Court to sign the proposed order.

2.

CASE #	CASE NAME	HEARING NAME
CVME2507370	JPMORGAN CHASE BANK N.A. VS PERZABAL	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY OF JUDGMENT

Tentative Ruling: Motion unopposed.

IT IS ORDERED that the dismissal as to GONZALO PERZABAL submitted in the above-entitled action be set aside and that Plaintiff JPMorgan Chase Bank, N.A., shall have and recover from Defendant GONZALO PERZABAL the principal sum of \$6,336.00 plus court costs in the sum of \$0.00 for a total judgment of \$6,336.00. Court to sign the proposed order and the proposed judgment.

3.

CASE #	CASE NAME	HEARING NAME
CVME2511050	CAVALRY SPV I, LLC VS DANAN	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Moving party: Defendant Mark Danan, in pro per
Responding party: Plaintiff Cavalry SPV I, LLC

Motion filed: 5/15/25, served by certified mail on 5/16/26
Opposition filed: 6/18/26, served by overnight mail on 6/18/26
Reply filed: 6/22/26, served by certified mail on 6/24/26

CCP §1281 requires a trial court to grant a petition to compel arbitration “if [the court] determines that an agreement to arbitrate the controversy exists.” (CCP §1281.2.) “A petition to compel arbitration “is in essence a suit in equity to compel specific performance of a contract.”” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 411 (“*Rosenthal*”) quoting *Spear v. California State Auto. Assn.* (1992) 2 Cal. 4th 1035, 1040.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement . . . that party bears the burden of producing evidence of, and